

P O R T E R | S C O T T

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Attorneys for Defendant,

CSAA INSURANCE EXCHANGE

ELECTRONICALLY

FILED

*Superior Court of California,
County of San Francisco*

07/21/2026

Clerk of the Court

BY: AUSTIN LAM

Deputy Clerk

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Case No.: CGC-25-631802

Plaintiff,

vs.

**MEMORANDUM OF POINTS AND
AUTHORITIES IN SUPPORT OF
DEFENDANT'S MOTION TO DECLARE
PLAINTIFF A VEXATIOUS LITIGANT**

CSAA INSURANCE EXCHANGE; DOES 1
through 50, inclusive,

Defendants.

Date: August 26, 2026

Time: 9:00 A.M.

Dept: 302

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

Defendant CSAA INSURANCE EXCHANGE (“Defendant”) hereby submits the following Memorandum of Points and Authorities in Support of their motion to declare Plaintiff FRANCISCUS DYLAN ROSARIO (“Plaintiff”), a vexatious litigant.

I. INTRODUCTION

This motion arises from Plaintiff FRANCISCUS DYLAN ROSARIO’s pattern of abusive litigation conduct in this action. Representing himself in propria persona, Plaintiff attempts to relitigate all the same issues that arise out of his previous personal injury lawsuit. Plaintiff’s *underlying* case is entitled: *Rosario v. Abdelhalim.*, San Francisco County Superior Court Case No. CGC-21-594102. Plaintiff’s current suit targets the original (from the underlying case) defendant’s insurance carrier, CSAA, for CSAA’s litigation conduct in that underlying lawsuit. The gravamen of Plaintiff’s claim in this action still revolves around the same issues that were decided in the previous case—the weight of certain trial evidence (911 calls, bodycam footage, and CAD logs), rulings on motions in limine, and ultimately the defense verdict rendered in the underlying case.

Since filing this repeat litigation, Plaintiff continues to serve disruptive and harassing discovery requests, despite a stay of discovery being imposed due to Defendant’s filing of an Anti-SLAPP motion. (*See* RFJN, **Ex. D**) Although Defendant met and conferred with Plaintiff extensively regarding the pleadings, Plaintiff continued to seek to amend his pleadings despite the Anti-SLAPP motion pending, serve frivolous discovery requests, violating Code of Civ. Proc., § 425.16(g), and file a veritable torrent of frivolous motions, declarations, “bench briefs,” supplemental briefs in a never-ending cascade of A.I. generated documents

Plaintiff squarely meets the definition of “vexatious litigant” under Code of Civil Procedure § 391(b), subdivisions (2); and (3). Accordingly, Defendant respectfully requests that the Court grant this motion, declare Plaintiff a vexatious litigant, require judicial approval for any further filings in Court, in the State of California, and order him to furnish security.

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In Case No. CGC-25-631801, Plaintiff has burdened the Court with a veritable deluge of paper, clogging the Court’s docket with approximately 70 documents that include so-called “motions,” “bench briefs,” “supplemental briefs,” “other papers,” and various Declaration and exhibits. (See Declaration of Tyler J. O’Connell, [hereinafter “*O’Connell Decl.*”], ¶ 11(a)(x).) Plaintiff has also repeatedly attempted to file innumerable purported “Opposition” papers, far more than the single Opposition allowed by the Code. Plaintiff has also repeatedly sought leave to amend his pleadings, while the Defendant’s Anti-SLAPP motion remained pending. (*O’Connell Decl.*, ¶ 11(a)(v-vi).) In email correspondence, Plaintiff sent Defense counsel no fewer than one-hundred and twenty-one (121) emails, often engaging in making threats or disparaging comments to Defendants Ms. Priya Navaratnasingham and Mr. Alberto Reyna, despite being instructed by both Defense counsel and this Court to cease that conduct. (*O’Connell Decl.*, ¶ 11(a)(i, viii).) Plaintiff has admitted to using artificial intelligence large language models to craft his burdensome and lengthy emails and frivolous court filings. (*O’Connell Decl.*, ¶ 11(a)(viii).)

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1 Plaintiff has also filed this lawsuit against CSAA, *Case No. CGC-25-631802*, alleging CSAA
2 participated in fraudulent behavior in defending the underlying case. (See RFJN **Ex. A**, *Defendant's First*
3 *Amended Complaint*.) As in the concurrent lawsuit, Plaintiff engages in very similar behavior, sending
4 disparaging email correspondences, serving burdensome and unnecessary discovery requests, and
5 flooding Opposing Counsel's file and the Court's docket with A.I. drafted frivolous filings. (*O'Connell*
6 *Decl.*, ¶ 11(a)(i-ix).) In this case, Plaintiff increased the volume of email correspondence and filings he
7 has burdened Defense counsel with, sending over one-hundred and thirty (130) email correspondences,
8 and filing approximately 200 documents on the Court's docket. (*O'Connell Decl.*, ¶ 11(b)(i).) All these
9 filings appear to have been prepared by artificial intelligence large language models.

10 In response to Plaintiff's twin lawsuits all targeting protected litigation conduct from the
11 underlying case, Defendant's counsel filed an Anti-SLAPP motion, in this case, on April 9, 2026. (See
12 RFJN **Ex. D**, *Defendant's Special Motion to Strike Plaintiff's First Amended Complaint*). While the
13 Defendant's Anti-SLAPP motion was still pending, Plaintiff once again filed and served innumerable
14 purported "Oppositions," far in excess the single Opposition allowed by the Code and Plaintiff made
15 several unlawful and frivolous attempts to seek leave to amend his pleadings to side-step the Anti-SLAPP
16 motion. (*O'Connell Decl.*, ¶ 11(b)(v-vi).)

17 On July 1, 2026, this Court granted Defendant's Anti-SLAPP motion. (See RFJN **Ex. E**, *Order*
18 *Granting Defendant's Special Motion to Strike Plaintiff's First Amended Complaint*). Since the July 1,
19 2026 Order, Plaintiff has stated an intention of circumventing this Court's Anti-SLAPP rulings by filing
20 a new lawsuit in Contra Costa County, to evade this Court's rulings and judicial personnel. (*O'Connell*
21 *Decl.*, ¶ 11(b)(x).)

22 **III. LEGAL STANDARD**

23 Any person who commences, institutes, or maintains an action, including those acting in propria
24 persona, may be determined to be a vexatious litigant Code of Civ. Proc., § 391(d). The vexatious litigant
25 statutes were enacted to curb misuse of the court system by individuals who repeatedly file groundless
26 actions or attempt to relitigate issues previously resolved against them. Code of Civ. Proc., §§ 391–
27 391.7; *Shalant v. Girardi* (2011) 51 Cal.4th 1164, 1169–1170. California Code of Civil Procedure section
28 391(b) defines a vexatious litigant as a person who engages in the specified abusive litigation conduct. A

litigant is vexatious under section 391(b)(2) if after a litigation has been determined against the person, he “repeatedly relitigates or attempts to relitigate, in propria persona, either the validity of the determination against the same defendant[. . .] as to whom the litigation was finally determined or the cause of action, claim, controversy, or any of the issues or fact or law determined or concluded by the final determination against the same defendant[. . .] as to whom the litigation was finally determined.” (Code of Civ. Proc., § 391(b)(2)) Alternatively, a litigant is vexatious if, “[i]n any litigation while acting in propria persona, [a litigant] repeatedly files unmeritorious motions, pleadings, or other papers, conducts unnecessary discovery, or engages in other tactics that are frivolous or solely intended to cause unnecessary delay. (§ 391(b)(3)).

IV. ARGUMENT

Plaintiff meets the two definitions of vexatious litigant, under Code of Civ. Proc., § 391(b)(2)-(3). First, he continues to relitigate the same underlying issues from his previous personal injury case, starting new lawsuits in a misguided effort to circumvent the defense verdict from that case. Second, he continues to burden and harass opposing counsel and the Court with meritless and excessively burdensome filings and correspondences.

Plaintiff’s recently stated effort to re-file yet another lawsuit—now in Contra Costa County, to avoid this Court’s rulings, simply necessitates this motion. If this Court does not grant this motion, Plaintiff will frivolously embroil Defendant in litigation, in perpetuity. This motion, while subject to this Court’s discretion, simply must be granted in these extreme circumstances.

A. Plaintiff is a Vexatious Litigant Because He Is Merely Relitigating the Same Underlying Issues from His Personal Injury Case, Which Ended in a Defense Verdict.

Plaintiff is a vexatious litigant as he continues to repeatedly file lawsuits acting in propria persona against the original (from his underlying case) defendant’s insurance carrier, CSAA, seeking to impose liability based on the Defendant’s protected litigation conduct in defending the underlying personal injury case. In short, Plaintiff lost at trial by defense verdict, now he has sour grapes and has sued anyone who had any involvement in beating him at that underlying trial.

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1 A litigant is vexatious under section 391(b)(2) if after a litigation has been finally determined
2 against him, he repeatedly relitigates or attempts to relitigate the validity of that determination or issues
3 previously decided. Code of Civ. Proc., § 391(b)(2). Courts recognize that repeated filings seeking the
4 same relief may satisfy section 391(b)(2), even where the number of filings is relatively small. As few as
5 three motions might form the basis for a vexatious litigant designation where they all seek the exact same
6 relief which has already been denied or all relate to the same judgment. (*Morton v. Wagner* (2007) 156
7 Cal.App.4th 963, 972.) When evidentiary issues are presented to the trial court, the Court of Appeal may
8 review the verdict or decision. Code of Civ. Proc., § 906.

9 The current allegations Plaintiff attempts to relitigate all stem from the same underlying issues in
10 his personal injury case including the difference of opinions on the weight of certain trial evidence (911
11 calls, bodycam footage, and CAD logs). (*See* RFJN **Ex. A**, *Plaintiff's First Amended Complaint*). These
12 evidentiary arguments are hidden behind the fraud allegations against CSAA for their counsel's litigation
13 activity. Plaintiff's First Amended Complaint ("FAC") targets CSAA for its conduct in the underlying
14 personal injury lawsuit, specifically that CSAA allegedly made "false and misleading representations"
15 (*FAC* ¶ 22F) to this Court (based on CSAA's earlier claim denial), resulting in Plaintiff being forced to
16 litigate his underlying jury trial, in which Plaintiff lost by defense verdict. (*See* RFJN **Ex. G**, *Defendant's*
17 *Notice of Entry of Judgment, Rosario v. Abdelhalim, Case No. CGC-21-594102*). After the trial, Plaintiff
18 filed several motions to set aside the jury's defense verdict and this Court's judgment, raising the same
19 arguments around Defendant's "mishandling" of the "objective liability evidence" and alleged "fraud on
20 the Court." Plaintiff appealed, which was the correct remedy if Plaintiff was dissatisfied with the trial
21 verdict. (*See* Code of Civ. Proc., § 906. [A reviewing court may review the decision of any ruling that
22 affects rights of a party and can modify the judgment if appellant was prejudice by errors.]) His appeal is
23 currently pending review. (*See Rosario v. Abdelhalim, CA 1st Dist. Ct. of Appeal, Case No. A173827*;
24 *see also* RFJN **Ex. H**, *Plf's Notice of Appeal*.) Rather than awaiting appellate review, Plaintiff chose to
25 concurrently bring multiple repeat lawsuits, including this one, and instead targets the original defendant's
26 insurance carrier.

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1 Plaintiff's current action is a misguided and legally untenable attempt to litigate the issues he
2 previously raised through the previous personal injury trial and during pre- and post-trial motions.
3 Ultimately, Plaintiff presented his evidence, and the jury simply disagreed on its importance, evidenced
4 by the jury's finding of no liability. This repeat litigation reflects Plaintiff's clear attempt to circumvent
5 the finality of the Court's ruling, and jury verdict, by reasserting the same core arguments from his
6 underlying loss at trial. Such conduct falls squarely within Code of Civil Procedure section 391(b)(2) and
7 justifies this motion.

8 As such, Plaintiff's current lawsuit is an attempt to circumvent the court's ruling and to relitigate
9 the same issues from his underlying lawsuit, rather than wait for a final decision from the appellate court.
10 This in turn satisfies the requirements in section 391(b)(2), deeming him a vexatious litigant.

11 **B. Plaintiff is a Vexatious Litigant Because he has Engaged in All the Unmeritorious,**
12 **Unnecessary, and Frivolous Behavior Listed in CCP 391(b)(3)**

13 Plaintiff is a vexatious litigant as he harassed Defense Counsel with a barrage of discovery,
14 disparaging emails and a deluge of meritless filings. In doing so, he not only burdens the Defense counsel's
15 file but also clogs this Court's docket and is committed to overwhelming the defense with an unmitigated
16 deluge of A.I. drafted nonsensical filings.

17 A Plaintiff can also be deemed vexatious if in any litigation, while he is acting "in propria persona,
18 [if he] repeatedly files unmeritorious motions, pleadings, or other papers, conducts unnecessary discovery
19 or engages in other tactics that are frivolous or solely intended to cause unnecessary delay." Code of Civ.
20 Proc., § 391(b)(3). Code of Civil Procedure section 391(b)(3) does not specify a time frame or number of
21 filings to support a vexatious litigant finding, only that the litigant *repeatedly* files these pleadings.
22 (*Morton*, supra, 156 Cal.App.4th 963, 971.) "What constitutes 'repeatedly' and 'unmeritorious' under
23 subdivision (b)(3), in any given case, is left to the sound discretion of the trial court." (*Ibid.*) "The repeated
24 motions must be so devoid of merit and be so frivolous that they can be described as a 'flagrant abuse of
25 the system,' have 'no reasonable probability of success,' lack 'reasonable or probable cause or excuse'
26 and are clearly meant to 'abuse the processes of the courts and to harass the adverse party than other
27 litigants.'" (*Ibid.*)

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1 Plaintiff has engaged in all the conduct sanctionable under Code Civ. Proc. § 391 § (b)(3), and
2 much more.

3 **a. Discovery Abuses**

4 Through the entire lawsuit, Plaintiff has also served several rounds of burdensome, harassing and
5 unnecessary discovery, including discovery motions. Several of these requests are sent in duplicative
6 named files. (See Def's RFJN **Ex. B**, *Plf. RFJN*; *Plf. RFJN (ISO Lodging Proposed TAC)*; *Plf. RFJN*).
7 Moreover, Plaintiff was also aware of the then-pending Anti-SLAPP motion in this Court, given he filed
8 multiple separate Opposition papers in response to the Anti-SLAPP. (See RFJN **Ex. B** *Opp. To Anti-*
9 *SLAPP Mot.*; *Opp. To Anti-SLAPP Mot.*) Yet, Plaintiff flagrantly ignored the law and continued to serve
10 Defendant various discovery requests and even filed a motion to compel discovery, seeking sanctions,
11 despite the then-pending Anti-SLAPP motion. (See RFJN **Ex. B**, *Plf. 's 6th Set Spec. Interrog.*; *Plf. 's 6th*
12 *Set Form Interrog. No. 17.1*; *Not. of Mot. To Compel.*) In so doing, Plaintiff has revealed his complete
13 disregard for Court Rules and has shown his motivation to merely harass and punish Defendant's counsel
14 with precisely the conduct the vexatious litigant statute is designed to prevent. Plaintiff's conduct
15 demonstrates both a lack of merit and a pattern of frivolous filings that burdens both Defense counsel's
16 file and the Court's docket.

17 **b. Abusive Emails**

18 Since the start of the case in February 2026, Plaintiff has sent Defense counsel no fewer than one-
19 hundred and twenty-one (121) email correspondences in *Case No. CGC-25-631801* and no fewer than
20 one-hundred and thirty (130) email correspondences in *Case No. CGC-25-631802*. (*O'Connell Decl.*, ¶
21 11(a)(i); 11(b)(i).) These email correspondences contain threats to report Defense counsel and Defense
22 counsel's *non-attorney staff members* to the California State Bar, without justification, and a constant
23 service of Plaintiff's frivolous filings, including the harassing discovery. (*Ibid.*) Furthermore, in email
24 correspondences, Plaintiff has made insulting and disparaging remarks about Defendants Ms. Priya
25 Navaratnasingham and Mr. Alberto Reyna; capitalizing the letters "RAT" in Ms. Navaratnasingham's last
26 name—spelling it as "*NavaRATnasingham*"—and referring to Mr. Alberto Renya, as "*Ms. Renya*."
27 (*O'Connell Decl.*, ¶ 11(a)(viii).) Despite being instructed by both Defense counsel and this Court to cease
28 this behavior, Plaintiff continued to refer to Defendants in such disparaging terms. (*Ibid.*) Finally, Plaintiff

frequently reminds Defense counsels about their obligations under the Rules of Professional Conduct, all the while insulting counsels by accusing them of having “poor reading comprehension skills,” and telling counsels that they need to “go back to law school.” (*O’Connell Decl.*, ¶ 12, **Ex. 1**.) Plaintiff has

All this further demonstrates Plaintiff’s intention to harass Defense counsel, rather than legitimately litigate his case.

c. Frivolous Filings

Plaintiff has filed many harassing documents including so-called, “motions,” “bench briefs,” “supplemental briefs,” “other papers,” and various Declarations and exhibits that clog Defense counsel’s file and this Court’s docket with such A.I. drafted, frivolous filings. (*O’Connell Decl.*, ¶ 11(b)(ix).)

Even a brief review of this Court’s docket demonstrates Plaintiff’s abusive tactics. (*See* RFJN **Ex. B**, *Register of Action for Case No. CGC-25-631802*.)

Many of Plaintiff’s filed papers, such as Plaintiff’s interrogatories and oral argument outline for hearings on motions, clearly do not need to be filed, yet Plaintiff does so anyways (*See* RFJN **Ex. B**, *Plf.’s 6th Set Spec. Interrog.*; *Plf.’s 6th Set Form Interrog. No. 17.1*; *Plf.’s Oral-Argument Outline ISI Ex Parte Application to Stay Motion to Strike Pending Ruling on Motion For Leave to File Second Amended Complaint*.) Furthermore, Plaintiff also filed both a “notice of supporting authority” and a “notice of directly adverse authority” that were filed, after hearings and rulings, merely in an effort to re-litigate adjudicated issues. (*See* RFJN **Ex. B**, *Not. of Supp. Auth. (JKC3H8 v. Colton)*; *Notice of Directly Adverse Authority (RPC 3.3(A)(2), JKC3H8)*.)

Crucially, Plaintiff continuously floods Defendant’s counsels’ (and staff) inboxes with hundreds and hundreds of *purported* filings; however, only a portion of those ostensible filings are actually filed with the Court. This—seemingly by design—creates incredible difficulty in determining what Plaintiff has actually filed with the Court, as opposed to those documents which are served only to harass and overburden the defense.

These examples illustrate Plaintiff’s flagrant disregard of Court Rules, and basic courtesy, indicating that he wants to file and/or serve as many papers as possible, completely unconcerned with burdening both Defendant and the Court.

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1 Accordingly, Plaintiff squarely satisfies Code Civ. Proc. § 391(b)(3).

2 **C. There is no Reasonable Probability that Plaintiff will Prevail—and Indeed, Plaintiff’s Case**
3 **Has been Disposed on Defendant’s Anti-SLAPP Motion—Therefore the Court Should Order**
4 **Security**

5 In addition to establishing that Plaintiff is a vexatious litigant, Defendant may move for an order
6 requiring the plaintiff to furnish security on the ground the plaintiff is a vexatious litigant and has no
7 reasonable probability of prevailing against the moving defendant. (Code Civ. Proc., § 391.3; *Shalant v.*
8 *Girardi* (2011) 51 Cal.4th 1164, 1169–1170.) That standard is met here.

9 Defendant’s Anti-SLAPP lawsuit was granted on July 1, 2026, meaning the Court recognized that
10 this case has no merit, effectively ending the case. (See RFJN **Ex. F**, *Order Granting Defendant’s Special*
11 *Motion to Strike Plaintiff’s First Amended Complaint*).

12 However, Plaintiff has now stated an intention of filing yet another lawsuit, now, in Contra Costa
13 County, in a not-at-all-veiled effort to circumvent this Court’s Anti-SLAPP ruling, and avoid appearing
14 before the same judicial personnel. (*O’Connell Decl.*, ¶ 11(b)(x).) Plaintiff’s behavior after this Court
15 granted Defendant’s Anti-SLAPP motion satisfies § 391(b)(2) showing that he is once again attempting
16 to relitigate the same issues in *yet another* lawsuit.

17 Furthermore, Plaintiff’s conduct of abusive email correspondence and harassing, A.I. generated
18 filings and discovery requests span both new cases. (*O’Connell Decl.*, ¶ 11.) As established, all these
19 filings are meritless, meant to burden Defense counsel and the Court’s docket with hundreds of frivolous
20 filings. Plaintiff’s extensive history of repeatedly fil[ing] unmeritorious motions, pleadings, or other
21 papers, [and engaging in. . . .] unnecessary discovery or engages in other tactics that are frivolous”
22 throughout three separate cases shows that he more than satisfies § 391(b)(3).

23 Under these circumstances, Code of Civil Procedure § 391.3 authorizes this Court to impose sanity
24 and order Plaintiff to furnish security as a condition of proceeding with this, or any, litigation in the State
25 of California.

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V. CONCLUSION

Based on the foregoing, Defendant respectfully requests that the Court declare Plaintiff FRANCISCUS DYLAN ROSARIO a vexatious litigant pursuant to Code of Civil Procedure § 391(b)(2)-(3), requiring Plaintiff to obtain Court approval prior to submitting any further filings in any Court in the State of California, and order Plaintiff to furnish security for any action he attempts to file, pursuant to Code of Civil Procedure § 391.3 and grant such other and further relief as the Court deems just and proper.

Dated: July 21, 2026

PORTER SCOTT
A PROFESSIONAL CORPORATION

Tyler J. O'Connell

By _____
Chad S. Tapp
Tyler J. O'Connell
Attorneys for Defendant
CSAA INSURANCE EXCHANGE

PROOF OF SERVICE

At the time of service, I was over 18 years of age and not a party to this action. My business address is 2180 Harvard Street, Suite 500, Sacramento, California 95815. On July 21, 2026, I served the following document: **MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF DEFENDANT’S MOTION TO DECLARE PLAINTIFF A VEXATIOUS LITIGANT**

	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served the above referenced document(s) by registered or certified mail, return receipt requested, with the United States Postal Service, in a sealed envelope with postage fully prepaid.
	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney’s office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party’s residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
X	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

Addressed as follows:

PLAINTIFF, IN PRO PER

Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
soltrinox@gmail.com

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct. Executed on Sacramento, California on July 21, 2026.

Serena Blithe

Serena Blithe